

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Wassim Abedrabbo	Team: Squad #12	CCRB Case #: 201707597	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 08/24/2017 5:30 PM	Location of Incident: § 87(2)(b) and En-route to the 69th Precinct stationhouse	18 Mo. SOL 2/24/2019	Precinct: 69
Date/Time CV Reported Fri, 09/08/2017 11:29 AM	CV Reported At: IAB	How CV Reported: In-person	Date/Time Received at CCRB Thu, 09/14/2017 12:54 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Jenifer Denny	08259	938984	069 PCT
2. POM Nico Hewitt	20530	922500	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Jenifer Denny	Abuse: Police Officer Jenifer Denny entered § 87(2)(b) in Brooklyn.	A . Exonerated
B . POM Nico Hewitt	Abuse: Police Officer Nico Hewitt entered § 87(2)(b) in Brooklyn.	B . Exonerated
C . POM Nico Hewitt	Discourtesy: At § 87(2)(b) in Brooklyn, Police Officer Nico Hewitt spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . POM Nico Hewitt	Discourtesy: En-route to the 69th Precinct stationhouse, Police Officer Nico Hewitt spoke discourteously to § 87(2)(b)	D . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On September 8, 2017, § 87(2)(b) filed this complaint with the Internal Affairs Bureau under log # 17-34979. This complaint was received at the CCRB on September 12, 2017.

On August 24, 2017, at approximately 5:30 p.m., § 87(2)(b) was informed by her § 87(2)(b) only identified as § 87(2)(b) that police officers were at the door of their home, § 87(2)(b) in Brooklyn. Her son returned downstairs, and shortly after Police Officer Jennifer Denny and Police Officer Nico Hewitt, both of 69th Precinct, went into the home and up the stairs to where § 87(2)(b) was standing (**Allegation A and B: Abuse of Authority, exonerated**).

PO Denny entered the bedroom first because § 87(2)(b) was not fully dressed. PO Denny informed § 87(2)(b) that the officers were there because she was violating an order of protection that her ex-fiancée and the owner of § 87(2)(b) § 87(2)(b) § 87(2)(b) had against her. After § 87(2)(b) began to cry and plead for the officers not to place her under arrest, PO Hewitt allegedly said, “Shut the fuck up and get dressed” (**Allegation C: Discourtesy, unsubstantiated**).

§ 87(2)(b) was arrested, placed in handcuffs, and taken to an unmarked vehicle and transported to the 69th Precinct stationhouse. En route to the stationhouse, § 87(2)(b) was crying and PO Hewitt allegedly said, “Shut the fuck up” (**Allegation D: Discourtesy, unsubstantiated**). The incident was witnessed by neighbor § 87(2)(b) and § 87(2)(b) s ex-fiancée, § 87(2)(b).

§ 87(4-b), § 87(2)(g)

Video footage was not obtained in relation to this case.

§ 87(2)(g)

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Jennifer Denny entered § 87(2)(b) in Brooklyn.

Allegation (B) Abuse of Authority: Police Officer Nico Hewitt entered § 87(2)(b) in Brooklyn.

It is undisputed that PO Denny and PO Hewitt entered § 87(2)(b) in Brooklyn.

During her CCRB interview, § 87(2)(b) stated that in the early afternoon of August 24, 2017, she went to the 69th Precinct stationhouse to file a complaint against § 87(2)(b) § 87(2)(b) for taking her identification card and not returning it (Board Review 01). When the officers went to her home at approximately 5:30 p.m., she believed they were there regarding her complaint and she said “okay” to her son § 87(2)(b) when he informed her that the officers were at the location. When § 87(2)(b) was asked what she did while her son returned down to the officers, she said she “waited” in the bedroom. When asked who allowed the officers to enter, she said that she did not know what her son told them after he returned downstairs. When she was asked if she gave permission for the officers to enter the home, she said, “I don’t know, they probably invited themselves.” When § 87(2)(b) was escorted out of the home, she saw § 87(2)(b) § 87(2)(b) in the kitchen. She did not know when he arrived at the home or if he spoke to the officers. § 87(2)(b)

§ 87(2)(b) stated over the phone that PO Denny and PO Hewitt were already in § 87(2)(b)'s apartment when she arrived at the location (Board Review 05).

Both PO Denny and PO Hewitt, stated that they went to § 87(2)(b) on August 23, 2017, to conduct a home visit regarding a domestic incident report filed by § 87(2)(b) against § 87(2)(b) which resulted in § 87(2)(b) being arrested (Board Review 02) (Board Review 03). While there, § 87(2)(b) told them that § 87(2)(b) is constantly violating the order of protection that he has against her by returning to his home. PO Denny and PO Hewitt gave § 87(2)(b) a direct number to reach them, for when § 87(2)(b) violates the order of protection. During the incident, § 87(2)(b) called the officers and told them that § 87(2)(b) was violating the order. Upon their arrival at the location, § 87(2)(b) opened the door and he allowed them in.

People v. Smith, 239 A.D.2d 219 (Board Review 04). Although expressed consent has not been articulated, implicit consent is conveyed when an officer's request to speak is affirmed and impliedly will take place inside of a dwelling.

§ 87(2)(g) [REDACTED] It is therefore recommended that **Allegations A and B be exonerated.**

Allegation (C) Discourtesy: At § 87(2)(b) in Brooklyn, Police Officer Nico Hewitt spoke discourteously to § 87(2)(b)

Allegation (D) Discourtesy: En-route to the 69th Precinct stationhouse, Police Officer Nico Hewitt spoke discourteously to § 87(2)(b)

It is undisputed that when PO Denny and PO Hewitt arrived at § 87(2)(b) § 87(2)(b) was not fully dressed. It is also undisputed that PO Hewitt, PO Denny, and § 87(2)(b) were the only ones in the unmarked vehicle when § 87(2)(b) was transported. § 87(2)(b) stated that she was asleep when the officers arrived and because she was asleep, she was not fully dressed when the officers entered. She was crying while attempting to explain to them that a judge told her she could stay at the home and pleaded with the officers not to arrest her. In response, PO Hewitt allegedly said, "Shut the fuck up and get dressed." § 87(2)(b) told the investigation that she believed a tenant of the home, § 87(2)(b) was in her room at that time and may have heard the alleged statement. Shortly after, she was taken out of the home and placed in an unmarked vehicle. En route to the stationhouse, she continued to plead with the officers not to arrest her. In response, PO Hewitt allegedly said, "Shut the fuck up" (Board Review 01). § 87(2)(g) [REDACTED]

§ 87(2)(b) (Board Review 05) stated over the phone that on August 24, 2017, she arrived at the location when § 87(2)(b) was being escorted out of the home. She did not witness or hear any conversation between the officers and § 87(2)(b) while they were in a bedroom. She did not hear PO Hewitt use profanity while he was at § 87(2)(b) on that day.

PO Hewitt stated that when the officers knocked on § 87(2)(b)'s door, she stated that she was not dressed. She was allowed to get dressed while PO Denny stood at the door to speak to her. PO Hewitt and PO Denny waited outside of the room until she got dressed and when she informed them she was done, they entered. PO Hewitt stated that he did not enter the room at any point when § 87(2)(b) was not dressed, and he did not say, "Shut the fuck up and get dressed."

He further stated that he did not recall the conversation in the unmarked vehicle en route to the stationhouse; however, he did not say, “Shut the fuck up,” to § 87(2)(b) (Board Review 03).

PO Denny provided an account consistent with PO Hewitt regarding the officers waiting for § 87(2)(b) to get dressed. PO Denny did not hear PO Hewitt say, “Shut the fuck up and get dressed,” to § 87(2)(b).

En route to the stationhouse, § 87(2)(b) continued to say that a judge allowed her to stay in the home. PO Denny did not recall what she said in response and she did not recall if PO Hewitt said anything in response. She did not hear PO Hewitt say, “Shut the fuck up” (Board Review 02).

§ 87(2)(g)

It is therefore recommended that **Allegations C and D be unsubstantiated.**

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (Board Review 06).
- This is the third CCRB complaint filed against PO Denny, who has two allegations in her CCRB history and has been a member of service for 12 years. No allegations made against PO Denny were substantiated; however, an entry allegation was exonerated in CCRB case number 200710788 (see officer history).
- This is the eighth CCRB complaint filed against PO Hewitt, who has a total of 13 allegations in his CCRB history and has been a member of service for 19 years. Of the 13 allegations, one Discourtesy-Word allegation was substantiated in CCRB case number 201214768; for which the Board recommended charges and the NYPD penalized PO Hewitt three vacation days (see officer history).

Mediation, Civil and Criminal Histories

- This complaint was deemed unsuitable for mediation because § 87(2)(b) was arrested without the issuance of a DAT.

- As of December 28, 2017, the Notice of Claim inquiry with the NYC Comptroller's office is still pending.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: 12

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date